
Appeal Decision

Site visit made on 26 August 2026

by J Bell-Williamson MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 22 September 2026

Appeal Ref: 6010236

Knightswood Cottage, Prince Albert Drive, Ascot, Berkshire SL5 8AQ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Searle against the decision of Bracknell Forest Council.
 - The application Ref is 25/00773/FUL.
 - The development proposed is erection of single storey infill extension with roof lantern and skylight. Installation of 3 no. roof lights to existing single storey roof and installation of front facing dormer window to existing dwelling and installation of side facing dormer window to existing garage.
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Decision

1. The appeal is dismissed.

Preliminary Matter

2. A new version of the National Planning Policy Framework (the Framework) was published on 17 August 2026. This has introduced significant changes to its structure and presentation, including the incorporation of development management policies. However, having carefully considered the new Framework, I am satisfied that, insofar as the issues determinative to this case are concerned, the relevant policy approach has not fundamentally changed, and my consideration of it would not cause procedural unfairness or prejudice to parties. Therefore, the parties have not been invited to make further comments.

Main Issues

3. The main issues are:
 - whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and relevant development plan policies;
 - the effect of the proposal on the openness of the Green Belt; and
 - whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Whether the proposal would be inappropriate development

4. The appeal property is a semi-detached dwelling located along a private road with an informal layout of dwellings in the surrounding area. It lies within the Green Belt identified on the Council's Policies Map. Policy LP 34 of the Bracknell Forest Local Plan 2020-2037 (2024) says that proposals for development in the Green Belt will be determined in accordance with relevant national policy.
5. The Framework makes clear that development in the Green Belt is inappropriate unless it falls within one of the categories listed in Policy GB7. With regard to the extension or alteration of an existing building, for development not to be inappropriate the Framework requires that the extension will not result in a disproportionate increase in size compared to the original building¹.
6. The supporting text to Policy LP 34 says that as a general guide an extension that would result individually, or cumulatively with other extensions, in an increase in volume of the original building of more than 40% is very likely to be regarded as disproportionate².
7. The appeal property is a semi-detached dwelling, the original volume of which was around 361m³. This has been extended several times since. The existing volume of the extended building is 793m³ and the proposed 95m³ extension would increase this to 888m³. Together, the existing and proposed extensions would amount to an increase in size of the original building by around 145%.
8. Neither Policy LP 34 of the Local Plan nor Policy GB7 of the Framework set a numerical ceiling on additions. However, when viewed cumulatively alongside the existing extensions, due to the increase in volume, the appeal scheme would result in a disproportionate increase in size compared to the original building. Consequently, the proposal would not fall within the exception in the Framework and would therefore be inappropriate development in the Green Belt.

Effect on openness

9. The Framework states that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. Openness is the counterpart of urban sprawl and often connotes the absence of development. It can have both spatial and visual dimensions.
10. The proposed scheme would add built development to the ground floor, as well as two small dormers in the roof. Therefore, the house with the proposed extensions would be more substantial in its form and size than the existing building, albeit that the impact on spatial openness would be limited given the scale of the proposal.
11. The proposed development would be largely enclosed by the existing extended building and would not sprawl onto undeveloped land, which would limit any harm to visual openness.

Other considerations

12. The proposal would create more efficient, usable internal living spaces but it has not been demonstrated that this could not be achieved by a less harmful scheme. As such, I attribute only moderate weight to this benefit.

¹ Policy GB7, 1b.

² Paragraph 9.102.

13. The appellants consider that under national and local Green Belt policies, a replacement dwelling with a greater volume than the proposed extended dwelling would be allowed and that this represents a fallback position. The Court of Appeal has found that there should be a real prospect of a fallback development being implemented³. There is no evidence that the appellants are pursuing such a scheme and, given that Knightswood Cottage is a semi-detached house, a replacement dwelling could be complex and costly to build. Therefore, there is no greater than a theoretical possibility that this might take place and thus I accord the fallback position limited weight.
14. The Council did not find harm or development plan conflict in relation to several other matters, including character and appearance, living conditions, highway safety, parking provision and biodiversity. However, even if I were to agree with the Council on these points, the absence of harm would be a neutral matter which would not carry weight in favour of the proposed scheme.

Whether there would be Very Special Circumstances

15. The Framework states that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances⁴. Substantial weight should be given to the harm to the Green Belt. Very special circumstances will not exist unless the harm to the Green Belt and any other harm are clearly outweighed by other considerations.
16. I give moderate weight to the provision of additional, more sustainable living space and limited weight to the fallback position. However, these other considerations would not clearly outweigh the harm to the Green Belt by reason of inappropriateness and the limited adverse impacts on openness. Consequently, the very special circumstances necessary to justify the proposed development do not exist. As such, it would be contrary to Policy LP 34 of the Local Plan and Policy GB6 of the Framework.

Conclusion

17. The proposal is contrary to the development plan and the material considerations, including the Framework and the very special circumstances test therein, do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal should be dismissed.

J Bell-Williamson

INSPECTOR

³ *Mansell v Tonbridge and Malling BC & others* [2017] EWCA Civ 1314.

⁴ Policy GB6, 2.